

SECOND ADDENDUM TO LEASE AGREEMENT

This Second Addendum To Lease Agreement (this "**Second Addendum**") is entered into as of the dates set forth below, but effective for all purposes as of April 1, 2013 by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "**Lessor**").

and

T. HEBERT INVESTMENTS, L.L.C., d/b/a **HERSHEY'S ICE CREAM**, a Louisiana limited liability company, whose mailing address is 6939 Clyve Road, Maurice, Louisiana 70555 and whose address during the term of this Lease shall be 107 Arnould Boulevard, Lafayette, Louisiana 70506, (hereinafter referred to as the "**Lessee**").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of April 1, 2007 (the "**Lease Agreement**"); and

WHEREAS, the Lessor and the Lessee entered into a First Addendum To Lease Agreement dated as of January 29, 2010 providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2013 ("**First Renewal Term**"); and

WHEREAS, the First Renewal Term ends March 31, 2013 and the Lessor and the Lessee wish to amend the Lease Agreement to provide for an extension of the Lease Agreement for an additional thirty-six (36) month period and to address certain other issues.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. The Lessor and the Lessee hereby agree that in accordance with Section 31.01 of the Lease Agreement the Lessee is renewing and extending the Lease Agreement, and such extension period is for thirty-six (36) months beginning April 1, 2013 and expiring March 31, 2016 (the "**Second Renewal Term**").
2. The Base Rent and Additional Rent payable during the Second Renewal Term in accordance with Section 31.01 of the Lease Agreement shall be as follows:

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- a) Base Rent during the Renewal Term shall \$12.00 per square foot per year, payable monthly (“Base Rent”).
- b) With respect to Additional Rent, the amount of Common Area Maintenance Charges for the Renewal Term is hereby fixed at \$1.50 per square foot of the Premises per annum, payable monthly and the amount of Taxes and Insurance Charges for the Renewal Term is hereby fixed at \$.50 per square foot of the Premises per annum, payable monthly.

Beginning on first day of the Second Renewal Term and extending through the last day of the Second Renewal Term, the Total Monthly Rental Payment shall be calculated as follows:

Base Rent (1,743 x \$12 = \$20,916/12 =	\$1,743.00
Common Area Maintenance Charges	217.88
Tax and Insurance Charge	72.63

Total Monthly Rental Payment	<u>\$2,033.51</u>
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- 3. The Lessor and the Lessee hereby agree that the terms and conditions of this Second Addendum shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants on On The Boulevard Shopping Center. The Lessee acknowledges that the foregoing covenant of confidentiality constitutes a portion of the consideration delivered to the Lessor to induce the Lessor to execute and deliver this Second Addendum and any breach thereof shall constitute an event of default by the Lessee under the Lease Agreement.
- 4. The remainder of the terms of the Lease Agreement not specifically amended by the First Addendum or this Second Addendum shall remain and be in full force and effect.
- 5. This Second Addendum to Lease Agreement may be executed in two or more counterparts each of which when executed and delivered as prescribed shall constitute an original.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

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IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year hereinbelow.

WITNESSES:

Linda G. Landry
Printed Name: Linda G. Landry

Broke Loisean
Printed Name: Broke Loisean

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla IV
Edward E. Abdalla, IV
Manager

Dated: March 8, 2013

Nulaid L. Becker
Notary Public

Richard L. Becker
Bar Roll Number 02894
Notary Public, State of Louisiana
My Commission Expires At Death

SECOND ADDENDUM TO LEASE AGREEMENT

IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year hereinbelow.

WITNESSES:

Moira Evanco
Printed Name: Moira Evanco

Broke Loreau
Printed Name: Broke Loreau

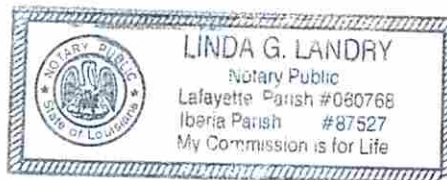
LESSEE:

T. HEBERT INVESTMENTS, L.L.C.,
a Louisiana limited liability company

By: *Tye J. Hebert*

Tye J. Hebert
Chief Operating Officer

Linda G. Landry
Notary Public



NOTARY ATTEST TO SIGNATURES ONLY
AND NOT THE CONTENTS OF THE DOCUMENT

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